

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT'S REQUEST FOR EMERGENCY CONSIDERATION OF
SUPPLEMENTAL DECLARATION REGARDING SALARY
SUBSTITUTION, IMMIGRATION FRAUD, AND RETALIATORY
LITIGATION**

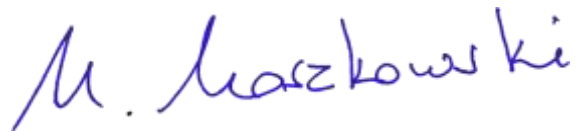
COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully submits the attached Supplemental Declaration to correct material omissions in the Court's understanding of the facts supporting Plaintiffs' claims. As described in the attached Declaration, Plaintiff DeepGulf, Inc. repeatedly certified to the United States Government that it would pay Defendant a prevailing CEO wage, secured immigration benefits based on that promise, and then failed to honor it for more than half of the relevant period. The compensation now at issue was not a windfall, but a partial substitution for salary DeepGulf had refused to pay.

Rather than acknowledging this debt, DeepGulf and its Chairman, Rus Howard, concealed their personal guarantee of Defendant's salary—secured by private real estate—and now seek to penalize Defendant for having received partial compensation from others on their behalf.

This Court's current findings appear to treat such compensation as unjust enrichment, despite being a direct consequence of DeepGulf's own dereliction of duty and misrepresentations to federal authorities. For these reasons, Defendant respectfully requests that the Court accept and review this filing as an emergency supplement prior to entry of Final Judgment.

Respectfully submitted this 10th day of July, 2025.

Marc Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Le Verdos
83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 10th day of July, 2025, a copy of this Request has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Marzowski

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Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

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**SUPPLEMENTAL DECLARATION OF MARC MOSZKOWSKI
REGARDING SALARY SUBSTITUTION, IMMIGRATION FRAUD, AND
RETALIATORY LITIGATION**

I, Marc Moszkowski, declare as follows:

1. DeepGulf's H1-B Sponsorship and Salary Default

- a.** I was first granted H1-B status in 1999 for employment unrelated to DeepGulf, Inc.
- b.** DeepGulf, Inc. sponsored two successive H1-B visas on my behalf:
 - The first ran from 2005 to 2008;
 - The second from 2008 to 2011.
- c.** DeepGulf successfully obtained two recaptures of time spent abroad:

- The first in 2011;
 - The second in 2014, extending status to February 2017.
- d.** As part of each petition and recapture, DeepGulf submitted sworn certifications to the U.S. Department of Homeland Security and Department of Labor that I would receive the prevailing wage for a Chief Executive Officer.
- e.** The wage initially certified in 2005 was \$110,000/year. This increased to \$132,000/year in 2008.
- f.** Despite those binding certifications, I received no salary whatsoever from 2005 to 2007 (inclusive), nor from 2013 to 2016 (inclusive), though I remained under H1-B status for the full period 2005–2016.
- g.** Despite repeated sworn certifications to U.S. immigration authorities, DeepGulf was in dereliction of its wage obligations for more than half the total duration of my twelve years under H1-B status. DeepGulf petitioned four times—in 2005, 2008, 2011, and 2014—yet failed to pay me any salary at all during more than two of those four visa periods, despite reaping the benefits of my work and of the visa approvals.

2. Substitute Compensation by Toke Shareholders

- a. In 2010 and 2011, to help cover tax liabilities and personal obligations incurred as a result of DeepGulf's default in 2005, 2006, and 2007, an East Timorese co-founder of Toke Oil and Gas S.A. voluntarily wired me \$345,000.
- b. This payment was made from the Timorese own 49.7% share of project revenue—not from Toke corporate funds, and not from any account controlled by or due to DeepGulf.
- c. This substitute compensation was a moral and equitable remedy for DeepGulf's wage default—borne not by the liable party, but by uninvolved partners seeking fairness.

3. Retaliatory Litigation for Receiving Owed Wages

- a. Rather than thanking the Timorese for covering obligations DeepGulf itself had failed to honor, DeepGulf filed suit against me—claiming I “went rogue” for accepting what it had promised and certified under oath.
- b. The result is a Kafkaesque inversion: I am now penalized by the Court for receiving a salary that DeepGulf unquestionably owed me, and which others paid in its place.

4. Unreported Immigration Fraud

- a. In 2019 and 2020, during the first Trump administration, I attempted to report DeepGulf's fraudulent certifications to the DHS Whistleblower portal. The website was non-functional at the time, and no complaint could be submitted.
- b. No federal inquiry has occurred, and the fraud has instead been compounded by civil punishment.

5. Conclusion and Preservation of Rights

DeepGulf's conduct constitutes:

- A fraud on the U.S. Government, by knowingly misrepresenting salary compliance;
- A fraud on me, the employee, by depriving me of lawfully certified wages;
- A fraud on a Timorese shareholder, whose voluntary intervention is now repurposed into an accusation;
- And a fraud on the Court, by weaponizing this false narrative into a judgment for damages.

6. Statute of Limitations Is No Shield for Fraud-Based Litigation

Plaintiff may attempt to invoke the statute of limitations to avoid accountability for its violations of U.S. immigration and labor law. But while such a defense might bar enforcement action by federal authorities, it cannot sanitize the conduct or legalize the breach. DeepGulf, Inc. did not merely defraud the U.S. government and fail to pay the wages it had sworn under penalty of law to provide. Its Chairman, Rustin Howard, had personally guaranteed those salaries on his private real estate—but concealed that guarantee from me until it was uncovered in discovery in 2018. Instead of honoring this obligation, DeepGulf now seeks to exploit its own misconduct by suing me for having accepted substitute compensation from third parties who intervened ethically to meet the company's legal commitments. The current litigation thus perpetuates and weaponizes the original fraud. The statute of limitations may run against regulators; it does not authorize a party with unclean hands to use the courts as an instrument of injustice.

I respectfully submit this Declaration to preserve all appellate and constitutional rights in light of the underlying immigration fraud and retaliatory nature of this litigation.

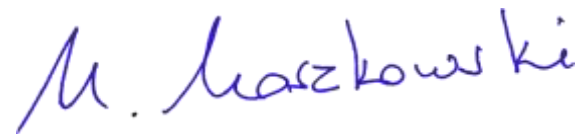
Respectfully submitted this 10th day of July, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

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